Obasi v Oreana [2025] DIFC SCT 169

DECEMBER 24, 2025 SCT - JUDGMENTS AND ORDERS

Claim No: SCT 169/2025

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

OBASI

Claimant/Respondent

and

OREANA

Defendant/Appellant

ORDER WITH REASONS OF H.E. JUSTICE ROGER STEWART KC

UPON the claim having been filed on 6 March 2025 (the "Claim")

AND UPON the Judgment of SCT Judge Hayley Norton (the "Judgment") giving judgment for the Claimant on 24 October 2025 (the "Judgment")

AND UPON considering the Defendant's Appeal Notice dated 7 November 2025 seeking permission to appeal the Judgment (the "Permission to Appeal Application")

AND UPON considering the Claimant's Reply to the Permission to Appeal Application dated 5 December 2025

AND UPON a hearing being held before H.E. Justice Roger Stewart dated 15 December 2025 with the Claimant's and Defendant's representatives in attendance (the "Appeal Hearing")

AND PURSUANT TO Part 4 and Part 53 of the Rules of the DIFC Courts ("RDC")

IT IS HEREBY ORDERED THAT:

1. The Permission to Appeal Application is refused.

2. The request for an adjournment of the Hearing is refused.

3. There shall be no order as to costs

Issued by:

Delvin Sumo

SCT Judge and Assistant Registrar

Date of Issue: 24 December 2025

At: 9am

SCHEDULE OF REASONS

The Parties

1. The Claimant is Obasi (the "Claimant"), a commercial real estate brokerage company, registered and located in Dubai, the UAE.

2. The Defendant is Oreana (the "Defendant"), a company registered and located in Dubai, the UAE.

Background

3. On 6 March 2025, the Claimant filed a Claim with the DIFC Courts' Small Claims Tribunal (the "SCT") seeking payment from the Defendant for brokerage services in the amount of AED 391,123.45 based on the lease brokerage agreement the parties entered into (the "Agreement").

4. The Defendant failed to attend the first hearing listed before SCT Judge Hayley Norton, while the Claimant's representative was in attendance (the "First Hearing").

5. The First Hearing was adjourned to 8 September 2025, in which the Defendant sought to rely on documents that had previously been filed with the Court. The Defendant was directed by Judge Norton, to seek permission from the Court to rely upon the documents at such a later stage.

6. A further hearing for this Claim was held on 2 October 2025, at which the Claimant's and the Defendant's representatives attended.

7. The Judgment of SCT Judge Hayley Norton, was issued on 24 October 2025, granting the Judgment Sum in favour of the Claimant.

8. On 7 November 2025, the Defendant filed a permission to appeal application to the Judgment (the "Permission to Appeal Application").

9. A permission to appeal hearing was listed before myself on 15 December 2025 (the "Appeal Hearing").

Application to adjourn the Appeal Hearing

10. This is an application by the Defendant, to adjourn the Hearing scheduled at 10:30am on Monday, 15 December 2025.

11. Around an hour before the Appeal Hearing, the Defendant emailed the Registry stating that he was ill and requested an adjournment of the Appeal Hearing.

12. I requested that the matter proceed as scheduled, and the Defendant appeared stating he was ill suffering from influenza, although no medical certificate was produced. However, he stated that he was finding it difficult to proceed and wanted to instruct legal representation in relation to the matter.

13. I granted an adjournment until 3:30 that afternoon on 15 December 2025, at which point the Defendant's appointed legal representation was present. She made it clear that she was not in a position to proceed and needed time to review the documents and therefore renewed the application for adjournment.

14. Notwithstanding the circumstances, I was not prepared to grant an adjournment in those circumstances. It seems to me that the Defendant has had every opportunity to make arrangements to appear in relation to this matter.

15. It also seems so me that given the history of the event of the matters of first instance, there has been two hearings which have been wasted effectively because the Defendant has either failed to attend or produced documents late.

16. The SCT is designed to deal with small claims, but it is important that it deals with them proportionately and in accordance with the sums at stake.

17. To grant an adjournment in these circumstances seems to me to be unfair and unlikely to be in accordance with the overall objective.

18. For those reasons, I decide that the adjournment should not be granted.

The test for Permission to Appeal

19. The circumstances in which the Court of First instance may give permission to appeal, are strictly circumscribed by Article 21 of the DIFC Courts law No. 2 2025 which provides:

> "21. Appeals Against Small Claims Tribunal Judgments
>
> A. Judgments of the Small Claims Tribunal may be appealed before the Courts of First Instance in accordance with the procedures established under the DIFC Laws, DIFC Regulations, Rules of the Courts or any Practice Direction or Order issued by the DIFC Courts, where the appeal relates to:
>
> (1) A question of law
>
> (2) An allegation of a miscarriage of justice
>
> (3) An issue of procedural fairness; or
>
> (4) A matter provided for in or under DIFC Laws.

20. There is no right to appeal on questions of fact. This is unsurprising given that hearings before the SCT are intended to be informal as set out in RDC 53.51 and that the strict rules of evidence do not apply as set out in RDC 53.53.

The Proposed Grounds of Appeal

21. The Defendant has put forward the first ground of appeal being misinterpretation of who introduced the relevant unit.

22. Under Clause 2 of the Agreement along with what the Defendant says, the Defendant had already been in direct contact with Ofir about management months earlier from January to May 2024, regarding the same development.

23. The Defendant provided evidence of WhatsApp communications demonstrating that multiple unites were proposed directly by Ofir well before the broker's involvement.

24. This issue was dealt with by the learned judge in her Judgment.

25. In paragraphs 18 and following, the judge recorded the Defendant submits that it actively searched for a retail space unit for over a year before engaging the service of the Claimant, including registering its interest with Ofir Properties and remaining on its waitlist for several months and exploring leading options with Olivija at onshore Dubai, prior to signing the Agreement.

26. The Judge returns to this issue in paragraph 33 of the Judgment, where she sets out clause 2 of the Agreement.

27. Clause 2 of the Agreement sets out the requirements for 'introducing' a property, and provides as follows:

> "The Broker will introduce the suitable properties to the Tenant **via email**. The Tenant does need to have physically visited the properties to be deemed as introduced by the Broker. If the Tenant has already been introduced to the property/s, then an email **must be sent to the Broker within two (2) business days** confirming they have already been introduced to the property/s, these property/s will then not be considered as introduced by the Broker. **If this email is not sent by the Tenant these properties will be deemed to have been introduced by the Broker.**" [emphasis added]

28. As the Judge records, the Claimant sent the introduction email on 13 June 2024, and there is nothing before the Court suggesting that there had already been an introduction. The Judge accordingly found that the email was sufficient evidence to demonstrate the Claimant's introduction to the property.

29. The Judge also found in paragraph 40, that the discussions which had been taking place in relation to the February proposed lease, were in relation to a different property from that ultimately agreed.

30. It seems to me, there is no basis for suggesting that the Judge did not consider the relevant evidence and material, or that she came to a wrong conclusion in relation to Clause 2 of the material Agreement.

31. I, therefore, find there is no real prospects of any success in relation to the misinterpretation of their introduction.

32. The second ground is that the broker's actions were not the effective cause of the lease, and that rather the independent negotiations led to the lease with no contribution from the respondent. This is also dealt with by the Judge in her Judgment, where she refers in paragraph 41, to Clause 4 of the Agreement, which reads as follows:

> "Once a property/building has been introduced by the Broker, the Tenant may not directly contact the Landlord/Owner. If they do so and **sign a lease contract within 12 months of the introduction**, then the **commission** amount as outlined in this agreement **shall become immediately due**." [emphasis added]

33. It follows as it seems to me, that the correct consideration here is not what the effective cause was, but whether the material terms of the agreement were met. I see no basis upon which it can be said that the Judge did not consider anything other than the correct legal test.

34. The third ground of appeal relates to failure of the Respondent to fulfil its contractual duties.

35. First, I see no basis upon which it is set out or alleged that there was a breach of these duties. Secondly, it seems to me that it would amount to a counterclaim, and third I take the view that these are irrelevant to the Claimant's claim for commission, and I therefore see no prospect of any ground succeeding under this head.

36. The fourth ground of appeal asserts that material evidence was not considered. This is plainly a direct factual challenge, and in any event, it does not seem to me that it is borne out, and I take the view that there is no prospect of success.

37. The fifth ground of appeal alleges incorrect application of clause 4, with which I have already dealt with. I find that there is no basis for a suggestion of a successful appeal.

38. The alternative request is effectively for time to pay or a reduction. I do not consider that this has any basis on an appeal, and it seems to me that in those circumstances there are no grounds in relation to that.

39. For those reasons sets out above, I therefore dismiss the Permission to Appeal Application.